

		privileged. The Court GRANTS Plaintiff's motion to compel compliance with respect to RFP No. 49 and ORDERS Allview to produce a supplemental privilege log. <u>RFP Nos. 1, 3, 4, 6, and 7</u> With respect to RFPs Nos. 1, 3, 4, 6, and 7, the Court ordered Allview "to produce all documents which support its claim that Evans misappropriated trade secrets, including those documents identified in Allview's response to Special Interrogatory No. 6. This should include the documents which contain the information which Allview claims Evans misappropriated and upon which it bases its claim for misappropriation of trade secrets." (ROA 479.) Allview contends it served modified discovery responses to Special Interrogatories on 8/25/25, clarifying it was only relying on those internal books and records "relating to all Del Mar and/or Allview clients poached by Evans, Mann, and/or SPS" (Opp. at 10:8-11.) Allview further responses to Special Interrogatory No. 6 at the time of the Court's order referred to "[a]ll internal books and records of Del Mar Parties, including all records relating to its property management clients." Allview cannot unilaterally change the scope of the Court's order by subsequently serving a further supplemental response. Allview's further responses to Special Interrogatory No. 6 also identified "[c]orrespondence between former Del Mar property management clients and Del Mar terminating their property management agreements." Allview does not contend it has produced all documents with respect to this category or the other categories set forth in its further response to Special Interrogatory No. 6 <i>at the time of the Court's 4/28/25 order</i>. The Court GRANTS Plaintiff's motion to compel compliance with respect to RFP Nos. 1, 3, 4, 6, and 7 and ORDERS Allview's compliance with the Court's 4/28/25 Order with respect to these requests for production. The Court DENIES both parties' request for sanctions.
6.	GUZMAN VS. BEC ELECTRIC, INC. 2025-01525454	MOTION TO STRIKE PORTIONS OF COMPLAINT Defendant BEC Electric, Inc. dba Service Lion's Motion to Strike Portions of Plaintiff's Complaint is DENIED. Defendant moves to strike portions of Plaintiff's complaint on the ground Plaintiff failed to plead facts sufficient for an award of punitive damages.

“To support punitive damages, the complaint asserting one of those causes of action must allege ultimate facts of the defendant’s oppression, fraud, or malice.” (*Spinks v. Equity Resident Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1055 [citation omitted].)

Civil Code section 3294 defines “malice” as conduct “intended by the defendant to cause injury to plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard for the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “Oppression” is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).) “Fraud” is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

Additionally, section 3294, subdivision (b) provides: “An employer shall not be liable for damages . . . based upon acts of an employee of the employer, unless the employer . . . authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).)

“Pleading in the language of the statute is not objectionable when sufficient facts are alleged to support the allegation.” (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6-7.)

Plaintiff alleges:

- Defendants’ conduct was intended to cause injury to Plaintiff or was despicable conduct carried out by Defendants with a willful and conscious disregard of Plaintiff’s rights, or subjected him to cruel and unjust hardship in conscious disregard of his rights so as to constitute malice, oppression, or fraud. (Compl. ¶ 109.)
- Terry Lujan (a management-level employee with Defendants) regularly told Plaintiff about sexual experiences with her partner, including using sex toys and other paraphernalia during sexual intercourse and intentionally and offensively touched Plaintiff without his consent on multiple occasions. (Compl. ¶ 27.)
- David Hazel (a management-level employee with Defendants) regularly told Plaintiff about sexual experiences with his partners, repeatedly invited Plaintiff to visit a strip club while they were on-duty, which Plaintiff invariably rejected, made crude remarks about hiring sex worker,

		showed Plaintiff pornographic images and videos on his cell phone, and sent photographs of himself at a strip club to Plaintiff's personal cell phone. (Compl. ¶ 28.) These allegations sufficiently allege conduct that subjected Plaintiff to subjects to cruel and unjust hardship in conscious disregard of his rights. Defendant further contends Plaintiff does not identify the officer, director, or managing agent of the corporation who had advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice. As set forth above, Plaintiff alleges Lujan and Hazel were management-level employees with Defendants. (Compl. ¶¶ 27, 28.) “[T]o demonstrate that an employee is a true managing agent under [Civil Code] section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the <i>employee exercised substantial discretionary authority over significant aspects of a corporation's business.</i>” [Citation.] “The scope of a corporate employee's discretion and authority under our [managing agent] test is therefore a <i>question of fact</i> for decision on a case-by-case basis.” (<i>Davis v. Kiewit Pacific Co.</i> (2013) 220 Cal.App.4th 358, 366 [emphasis in original].) Plaintiff's allegations are sufficient at the pleading stage. Whether Lujan and Hazel are actually managing agents for purposes of punitive damages involves a factual determination that is inappropriate for purposes of a motion to strike. Accordingly, the Court DENIES Defendant BEC Electric, Inc. dba Service Lion's Motion to Strike Portions of Plaintiff's Complaint.
7.	DOE VS. IHERB, LLC 2025-01505285	MOTION TO STRIKE Defendants iHerb and Trent Kruse's Motion to Strike Plaintiff's Jane Doe Designation is CONTINUED to July 7, 2026, to be heard concurrently with Plaintiff's Motion to Proceed Pseudonymously and for Entry of a Protective Order. The Court finds it would be most efficient to address the issues raised in these motions together.
8.	ZANDI VS. CALVARY CHAPEL OF COSTA MESA 2024-01405013	1. MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Plaintiff Felicia Zandi's Motion to Allow Additional Time for Defendant Jacob Harman's Deposition, joined by Defendants Calvary Chapel of Costa Mesa and Brian Brodersen, is GRANTED. Harman is ORDERED to sit for a second session of his deposition beyond the seven hours authorized without a court order in Code of